

Tasleem Mian v. State of U.P.

Allahabad High Court · Division Bench · 16 March 2021 · WRIT - C No. - 7941 of 2021 · **Writ dismissed; bill-assessment dispute relegated to Clause 6.5.**

HEADNOTE

A dispute regarding assessment of an electricity bill is to be ventilated before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. The High Court dismissed the writ without examining the assessment on merits.

FACTUAL SUMMARY

Tasleem Mian filed Writ-C No. 7941 of 2021 in the Allahabad High Court against the State of Uttar Pradesh and two others, one of whom was represented by counsel for the distribution licensee. The petition concerned a dispute over assessment of an electricity bill. The Division Bench of Sunita Agarwal and Deepak Verma JJ. heard counsel for the petitioner, the Standing Counsel for the State respondents, and counsel for respondent no. 3, and disposed of the writ without examining the correctness of the assessment on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-assessment-alternate-remedy

HOLDING

A dispute regarding assessment of an electricity bill can be ventilated by approaching the competent authority in accordance with Clause 6.5 of the Electricity Supply Code, 2005; the writ petition is dismissed on that footing. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench refused to decide the bill-assessment controversy in writ and sent the petitioner to the Clause 6.5 competent authority. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Assessment of the electricity bill was treated as a matter for the statutory Clause 6.5 remedy rather than writ adjudication. ¶ 1

6.5-representation-as-appropriate-remedy The Court held that the petitioner could ventilate the assessment dispute by approaching the competent authority under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY-BILL ASSESSMENT

The Court did not examine the assessment on merits and left it to the Clause 6.5 authority. ¶ 1